

From: Popovich, Bradley (EGLE)
Sent: 5/29/2019 9:38:35 AM
To: "Barbieri, Charles" <CBarbieri@fosterswift.com>; "Jeff Dietlin" <utilities@cadillac-mi.net>
Cc: "Doug Langworthy (dlangworthy@Cadillac-MI.net)" <dlangworthy@Cadillac-MI.net>; "ctomaszewski@cadillac-mi.net" <ctomaszewski@cadillac-mi.net>; "Brady, Donal (EGLE)" <BradyD6@michigan.gov>; "Lane, Byron (EGLE)" <LANEB@michigan.gov>; "DePetro, Phillip (EGLE)" <DePetroP1@michigan.gov>; "Schmitt, Glen (EGLE)" <SCHMITTG1@michigan.gov>
Subject: RE: Paragon WO 207982 Final Report Result Inquiry

Good Afternoon Mr. Barbieri,

The Department understands Cadillac's concerns regarding Bis(2-ethylhexyl) phthalate and the potential for lab errors to arise during the testing of said compound. These instances are the basis behind reducing the monitoring frequency for Bis(2-ethylhexyl) phthalate from weekly to monthly. Additionally, as expressed below, an opportunity for the laboratory to disclose any errors that may have transpired was also provided. Taking these and the other various compromises that have already been made for the draft NPDES permit the department has decided to move forward with the permit issuance process. All of the aforementioned comments will be incorporated within the draft NPDES permit. The Department has appreciated the opportunity to work with the City of Cadillac and if the city has any additional comments, they are welcome to submit them during the public notice period.

Best regards,

Bradley Popovich
Environmental Quality Analyst
Water Resources Division
Municipal Permits Unit
Michigan Department of Environment, Great Lakes, and Energy
(517) 284-6656
PopovichB@Michigan.gov
Monday – Friday 8:00-4:30

From: Barbieri, Charles <CBarbieri@fosterswift.com>
Sent: Thursday, May 9, 2019 1:51 PM
To: Popovich, Bradley (EGLE) <PopovichB@michigan.gov>; Jeff Dietlin <utilities@cadillac-mi.net>
Cc: Doug Langworthy (dlangworthy@Cadillac-MI.net) <dlangworthy@Cadillac-MI.net>; ctomaszewski@cadillac-mi.net; Brady, Donal (EGLE) <BradyD6@michigan.gov>; Lane, Byron (EGLE) <LANEB@michigan.gov>; DePetro, Phillip (EGLE) <DePetroP1@michigan.gov>; Schmitt, Glen (EGLE) <SCHMITTG1@michigan.gov>
Subject: RE: Paragon WO 207982 Final Report Result Inquiry

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5-9-19

Sir, the City of Cadillac appreciate your reply and has asked me to send you this letter. As you can see, it still has one issue at this point to iron out. Advise if questions. Chuck

Charles E. Barbieri

Attorney

Foster Swift Collins & Smith PC

313 South Washington Square

Lansing, MI 48933-2193

Phone: 517.371.8155

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FOSTER SWIFT
FOSTER SWIFT COLLINS & SMITH PC & ATTORNEYS

From: Popovich, Bradley (EGLE) [<mailto:PopovichB@michigan.gov>]

Sent: Thursday, May 02, 2019 8:21 AM

To: Barbieri, Charles; Jeff Dietlin

Cc: Doug Langworthy (dlangworthy@Cadillac-MI.net); ctomaszewski@cadillac-mi.net; Brady, Donal (EGLE); Lane, Byron (EGLE); DePetro, Phillip (EGLE); Schmitt, Glen (EGLE)

Subject: RE: Paragon WO 207982 Final Report Result Inquiry

Good Morning Mr. Barbieri,

Thank you for taking the time to submit additional PPN comments regarding the draft National Pollution Discharge Elimination System (NPDES) permit for Cadillac WWTP. Comments received by email on April 22, 2019 are presented below followed by the Department's responses:

1. First, while not necessarily the focal issue of our discussions, you may recall that the City asked that the proposed daily testing requirements for pH be adjusted to five times each week, which has been the actual practice. Our notes reflect that during the meeting of March 18, 2019, that the Department was willing to make that change. Therefore we would ask that Part I Section A.1. on page 4 be revised to reflect that point.

The Department agrees to the facilities concerns and will make the requested changes to the draft NPDES permit and associated documentation.

2. Second, we continue to question the draft permit's insertion of the copper testing requirement. We note that the quantification level (QL) set for copper in Part I Section A.2. is set at a QL of 1 microgram per liter, even though Glen Schmitt's memorandum of April 11, 2019 indicates that the permittee should be allowed based on its equipment to set the QL between 1 and 10 micrograms per liter. On that score, the City believes that it can achieve a QL, using the graphite furnace feature of its recently acquired lab equipment to achieve a QL within that range. The City wishes to have that opportunity to set an appropriate QL and result that the requirement in that section simply be changed to 10 micrograms per liter. Equally important is the City's concerns that an effluent limitations has been set for copper in Part I Section A.1. of the permit. The City would suggest that copper testing be conducted quarterly rather than weekly and that such testing be made a part of the reporting only portion of the permit. This approach takes into

account the cost and the lack of a justification basis at this time to include copper in the final effluent limitation section.

The department will remove the quantification level for total copper within Part I.A.2. and will incorporate language within Part I.A.1. of the draft permit to allow use of a quantification level of 10 ug/l. This quantification level is sufficiently sensitive to determine compliance with the final effluent limitations for total copper.

The City of Cadillac's letter mentions a lack of justification behind the effluent limitation for total copper. We disagree that there is a lack of a justifiable basis to include the effluent limitations for total copper. Final effluent data for total copper was analyzed and reported by the Cadillac WWTP and demonstrated that in accordance with the [Part 4 Regulations](#), Rule 323.1211 there is a reasonable potential for total copper to be discharged at concentrations in exceedance of the Michigan Water Quality Standards. These regulations require the NPDES permit to include appropriate final effluent limitations for the protection of the Clam River when reasonable potential is demonstrated.

3. Third, in reviewing the selenium requirement, we do not understand why the selenium QL in Part I Section A.2. needs to be set at 1 microgram per liter when the City has achieved already a QL of 2 micrograms per liter, which is below the proposed effluent standard. More significantly, the City does not believe that a selenium effluent limitation is needed based on significant prior historical testing, which has not shown any significant selenium results. The City believes that quarterly testing for selenium is acceptable and that selenium should only be reported without a limit.

Similar to the issue with total copper described above, the department will remove the quantification level for total selenium within Part I.A.2. and will incorporate language within part I.A.1. of the draft permit to allow use of a quantification level of 2.0 ug/l.

In regards to the lack of any significant selenium results, similar to total copper above, the data provided by the City of Cadillac demonstrates that there is a reasonable potential for total selenium to be discharged at concentrations exceeding Michigan Water Quality Standards. This is consistent with Rule 323.1211 of the Part 4 Regulations. Because of this reasonable potential the Department believes it is best to retain the effluent limitations for total selenium. Additionally, we feel it is important to note that the department has already reduced the monitoring frequency from weekly to monthly and has allowed for additional monitoring frequency reduction language to be retained within the draft permit.

4. Fourth, the City disagrees about the basis for including Bis(2-ethylhexyl) phthalate as a parameter with an effluent limitation in Part I Section A. 1. The City believes that phthalate compounds are notoriously an artifact of sampling and handling of this sampling in the presence of plastic or plasticized paper. Although the laboratory advised that it believes that its one isolated result was "real," the laboratory's response does not address the key point that phthalate could be present due to the method of the sampling and the handling of the sampling during analysis. The presence of this agent in a single sample does not justify the additional expense and effort the proposed testing requirement would impose. This compound cannot be testing for in the City's laboratory. The cost of performing monthly testing in an outside laboratory over a year or more is not warranted. The City proposed that this phthalate

compound be included if at all, as a part of a quarterly testing requirement on a reporting only basis with the right to request its deletion.

The Department offered the City an opportunity to prove that the Bis(2-ethylhexyl) phthalate sample was faulty, and the City was not able to provide evidence that the results should not be considered representative. The laboratory concluded the analysis indicated that the results were representative. We recognize the City's concerns regarding monitoring for Bis(2-ethylhexyl) phthalate, which is why we have already reduced the monitoring from weekly to monthly, while still providing an opportunity for further reduction in monitoring. Additionally, the Department does not factor in a facility's ability to conduct certain testing in house for various parameters when developing monitoring recommendations, as facilities all over the state regularly utilize external laboratories for testing.

Please let me know if you have any additional questions or concerns. Once approval is received to the Departments responses the permit will be moved to Public Notice.

Bradley Popovich

Environmental Quality Analyst

Water Resources Division

Municipal Permits Unit

Michigan Department of Environment, Great Lakes, and Energy

(517) 284-6656

PopovichB@Michigan.gov

Monday – Friday 8:00-4:30

From: Barbieri, Charles <CBarbieri@fosterswift.com>

Sent: Monday, April 22, 2019 3:23 PM

To: Popovich, Bradley (EGLE) <PopovichB@michigan.gov>; Jeff Dietlin <utilities@cadillac-mi.net>

Cc: Doug Langworthy (dlangworthy@Cadillac-MI.net) <dlangworthy@Cadillac-MI.net>; ctomaszewski@cadillac-mi.net; Brady, Donal (EGLE) <BradyD6@michigan.gov>; Lane, Byron (EGLE) <LANEB@michigan.gov>; DePetro, Phillip (EGLE) <DePetroP1@michigan.gov>; Schmitt, Glen (EGLE) <SCHMITTG1@michigan.gov>

Subject: RE: Paragon WO 207982 Final Report Result Inquiry

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4-22-19

Brad, the City of Cadillac asked me to send the attached letter to you regarding the draft NPDES permit. We look forward to some continued discussion on the permit. Please advise if you have any questions. Thanks. Chuck

Charles E. Barbieri

Attorney

Foster Swift Collins & Smith PC

313 South Washington Square

Lansing, MI 48933-2193

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From: Popovich, Bradley (DEQ) [<mailto:PopovichB@michigan.gov>]
Sent: Monday, April 15, 2019 9:13 AM
To: Jeff Dietlin
Cc: Barbieri, Charles
Subject: RE: Paragon WO 207982 Final Report Result Inquiry

Good Morning Mr. Dietlin,

Thank you for taking the time to contact the laboratory. Glen has utilized the additional data that was submitted on March 19, 2019, for the various metal parameters and changed his original recommendations, which is noted within the attached updated WQBEL review (also note the required Quantification Levels within the review and Part 1.A.2. of the draft NPDES permit). Below please reference the following changes that will be made to the draft NPDES permit:

1. **Total Copper:** No changes have been made.
2. **Total Nickel:** Based on the additional effluent data provided, there is no longer a reasonable potential for total nickel in the effluent to be discharged at levels higher than the Michigan Water Quality Standard (WQS). Due to this we have removed the effluent limitation of 51 ug/l and added a reporting requirement. The monitoring frequency has also been changed from monthly to quarterly.
3. **Total Selenium:** The monitoring frequency has been changed from weekly to monthly. An opportunity to apply for reduced monitoring from monthly to quarterly will still be included within the draft permit.
4. **Bis(2-ethylhexyl)phthalate:** The monitoring frequency has been changed from weekly to monthly. An opportunity to apply for reduced monitoring from monthly to quarterly will still be included within the draft permit.

Additionally, the department would like to note that if the facility intends to monitor more frequently than the monitoring frequency then it is required that all data be submitted via MiWaters. The department appreciates the facilities willingness to sample more frequently than is required in order to obtain an ample data set. If the facility has no further comments on the draft NPDES permit (attached) please let me know as soon as possible. Once confirmation is received the draft NPDES permit for the Cadillac Wastewater Treatment Plant will be moved to Public Notice.

Best regards,

Bradley Popovich
Environmental Quality Analyst
Water Resources Division
Municipal Permits Unit

Michigan Department of Environmental Quality
(517) 284-6656
PopovichB@Michigan.gov
Monday – Friday 8:00-4:30

From: Jeff Dietlin <utilities@cadillac-mi.net>
Sent: Thursday, April 11, 2019 11:20 AM
To: Popovich, Bradley (DEQ) <PopovichB@michigan.gov>
Cc: 'Barbieri, Charles' (<CBarbieri@fosterswift.com>) <CBarbieri@fosterswift.com>
Subject: FW: Paragon WO 207982 Final Report Result Inquiry

Bradley,

This is what we received from the Laboratory about the DEHP hit.
From the email they state” that there isn't additional information that would point to whether or not contamination of the sample happened”.

They can't confirm one way or another. I think there may be wiggle room here since it was a detection on our first sample only and not any of the subsequent samples.

Jeffrey M. Dietlin

City of Cadillac
Director of Utilities
(231) 779-7346(Direct)
(231)775-0906 (Fax)

From: Cindy Tomaszewski <ctomaszewski@Cadillac-MI.net>
Sent: Thursday, April 11, 2019 10:58 AM
To: Jeff Dietlin <utilities@cadillac-mi.net>
Subject: FW: Paragon WO 207982 Final Report Result Inquiry

Jeff –

This is the response I rec'd regarding the DEHP “hit” in the May 2016 additional monitoring sample.

Let me know if I need follow-up with anything else. Thanks,

Cindy A. Tomaszewski

Lab Supervisor

From: Kaitlin James <kaitlinj@paragonlaboratories.com>
Sent: Wednesday, April 10, 2019 2:44 PM
To: Cindy Tomaszewski <ctomaszewski@Cadillac-MI.net>
Subject: Paragon WO 207982 Final Report Result Inquiry

Hi Cindy,

The analyst looked up the original data package and found that there was no transcription error, the method blank showed no signs of contamination, that the batch QC performed passed acceptability, and that there isn't additional information that would point to whether or not contamination of the sample happened.

Please let me know if you have any further questions.

Thank you and have a great day!

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Please Note: Paragon Laboratories has updated its pricing for 2019.
Please view our website at www.paragonlaboratories.com to familiarize yourself with the 2019 rates.

If you do not currently have a quotation for 2019 with Paragon Laboratories, you will be subject to our list pricing effective January 14th, 2019.

Sincerely,
Kaitlin James
Drinking Water Account Coordinator

Paragon Laboratories, Inc.
[12649 Richfield Ct.](#)
[Livonia, MI 48150](#)

Phone: 734.469.5622
Fax: 734.462.3911

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